

Mehmood Ahmad Tahir
Bhatti and another

Mr. Maqbool Hussain Sheikh, learned counsel for the petitioner.
Mr. Agha Abu-ul-Hassan Arif, learned counsel for respondent No. 1.

“8. Having observed as above, since the parties are represented through senior counsels of good reputation have number of years of their experience of the proposed trial work at their credit this Court expects that on their own only relevant questions are asked to the PW-1. Mr. Khalid Habib, Advocate, learned counsel for the petitioner, who has been conducting cross-examination on PW-1 shall avail only one opportunity on 22.04.2025 at 10:30 a.m. to cross-examine PW-1 on behalf of petitioner as well as respondent / defendant No. 2 and the learned trial court will permit cross-examination during the court hours and

will be at liberty to discard any irrelevant question and regulate the proceedings smoothly in the court, and, if need be, will be at liberty to impose costs of any amount to either party.

9. *This order is announced with the concurrence of the parties.*

10. *Disposed of. ”*

2. It is evident from paragraph No. 9 that the above judgment was passed with the concurrence of the parties. On 08.05.2025 the petitioner was present before us and he stated that he has never given consent to pass the above judgment. Today, the learned counsel for the petitioner has adopted the same stance. The law, with respect to credence of any statement of a Judge, is well settled. In “Fayyaz Hussain” case¹, the Supreme Court of Pakistan refused to accept affidavit of a learned Advocate to persuade against the sanctity of judicial order. Relevant part of the said judgment is as under:-

“...Learned counsel attempted to persuade us, to accept the affidavit of Ch. Muhammad Afzal Kahloon Advocate over the judicial proceedings recorded in the Court of Additional A District Judge.....There is always a presumption of correctness in favour of judicial proceedings and credibility is attached to the proceedings before a judicial forum. Strong and unimpeachable evidence is required to rebut the presumption which is badly lacking in the case in hand. We are fortified in our view, by the dictum laid down by this Court in Ghulam Muhammad v. Malik Abdul Qadir Khan PLD 1983 SC 68 which is on all fours and attracted in the facts and circumstances of this case...”

¹ “Fayyaz Hussain versus Akbar Hussain and others” (2004 SCMR 964).

3. In “Syed Ali Ahmed Shah” case² the Supreme Court of Pakistan has dealt with situation where, in review jurisdiction, the applicant sought to disturb an order passed with consent of the parties. The Honourable Supreme Court ruled that review jurisdiction can only be exercised in exceptional cases, where error is apparent on the face of record that can be rectified without reappraisal or re-examination of evidence and merits:-

“...there has been serious allegation that consent of the parties has been wrongly recorded by the Hon'ble Judge of Sindh High Court, thus disputing the Judicial order and the proceedings however, without any evidence, material or formal Affidavit of the petitioner or of the counsel who was present in Court along with counsel for respondent. It is settled legal position that presumption of correctness and sanctity is attached to all judicial proceedings, orders, decisions and the judgments passed by the Courts, whereas, the same can be assailed by an aggrieved party by filing appeal, revision as may be provided in accordance with law. However, in exceptional cases, any order or judgment passed by the competent Court of jurisdiction, or any proceedings can be subjected to review under Order XLVII Rule. I C.P.C. and Section 114 read with Section 151 C.P.C. by showing some error on the face of the record and the impugned order/decision sought to be reviewed, which otherwise could be rectified without reappraisal of the evidence 'or re-examination of the merits of the case. Whereas, in the instant case no error of such nature has been pointed out except an allegation to the effect that the counsel representing the petitioner did not give any consent for disposal of the aforesaid revision

² “Syed Ali Ahmed Shah Versus Syed Shoukat Hussain Shah and Others” (2025 SCMR 361).

application in terms of order dated 16.12.2022, however, such allegation is not duly supported by affidavit to this effect by the learned counsel, therefore cannot be a ground or basis for seeking review of the consent order dated 16.12.2022...”

(Emphasis supplied)

4. This aspect is also examined by this Court in several cases and with observation that orders, judgments, decree and proceedings can no doubt be judiciously and legally examined by Courts of appeal, revision, or superintendence, however, factual allegations of such nature should not lightly be accepted to label the proceedings of the Court as wrongly recorded³.

5. The record manifests that after obtaining the judgment under review, the petitioner appeared before the learned trial Court on the date and time fixed by this Court. His learned Advocate then cross-examined the witness namely, Mehmood Ahmad Bhatti. Admittedly, prior to the same, lengthy cross-examination was conducted on the aforesaid witness. After availing the opportunity as granted by this Court and cross-examining the witness on 22.04.2025, the present review petition is instituted on the very next day i.e. 23.04.2025. The stance that judgment dated 09.04.2025 of this Court was not passed with consent of the parties, therefore, on the face of it appears to be incorrect.

³ “Muhammad Nawaz Versus Barkat Ali (PLD 2004 Lahore 21).

[Also see “Muhammad Arif Versus Aziz-ur-Rehman and Others” (2023 CLC 713), “Muhammad Zaman Versus Abdul Ghaffar and 3 Others” (PD 1980 Lahore 582)].

There is nothing available on record which suggests anything else but that the parties have given their consent at the time of obtaining the judgment sought to be reviewed. We are of the unwavering view that in the given circumstances of this case, to hold otherwise will result into prolonging the case and the present review is filed without caring that it has undesirable result of exposing a learned Judge to undignified controversies, which can have oppressive and vexatious effect on any Judge. We have observed this growing tendency in the litigants to achieve favourable result, which somehow is an unfortunate development.

6. To seek review of the judgment, next are the grounds of error by the learned trial Court in comprehending the concept of cross-examination or other alleged errors in the proceeding of the learned trial Court. We are afraid that we are not hearing appeal or a petition against any order of the learned trial Court. The grounds as to the incorrectness in the view adopted by learned trial Court, therefore, are not tenable.

7. There is yet another aspect of this matter. Besides, the fact that the judgment dated

“Westropp, C.J. in (1873) 10 Bom. HCR 75

“The statement of the Judge, who presides at a trial, whether it be in a criminal or civil case, is, as to what has taken place at the trial, conclusive. Neither the affidavits of bystanders, nor of jurors, nor the notes of counsel, nor of short-hand writers are admissible to controvert the notes of statement of the Judge. *Rex v. Grant* (c), *Everett v. Youclls* (d), *Gibbs v. Tike* (c) And in *Reg. v. Aaron Nellor* (f), Coleridge J., at page 131 says: “ I apprehend that we are bound to give credence to the statement of the Judge, and to take what the Judge so states to be incontrovertibly the fact... ”

09.04.2025 is passed after obtaining consent of the parties, the learned Judge has also examined the merits of the case. The paragraphs preceding the above reproduced part of the judgment reflect that the learned Judge arrived to his conclusion after conscious perusal of record and then applied the law settled in “Meera Shafi” case ⁵.

8. There are several precedents, including “Muhammad Shafi” case⁶, whereby, it has been settled that purpose of cross-examination is to assist the Courts in bringing the truth to light by disclosing or clarifying the matters, which witnesses may wish to conceal or confuse from motive of partisanship. In addition, the following is also observed in the said case:-

“...There is a regrettable practice among class of lawyers to use prolonged cross-examination for the purpose of leading a witness into error after his alertness has been reduced through fatigue and his resistance to suggestions made in the form of leading questions has thereby been reduced. Such a practice is plainly designated not for the disclosure of truth, but for the manipulation of error, and we take this opportunity of express our entire disapproval of the use of such methods. Mr. Barkat Ali Saleemi himself agreed that when he studied the case for the purpose of the present appeal, he felt that he had gone too far in

⁵ “Meera Shafi Versus Ali Zafar” (PLD 2023 Supreme Court 211).

⁶ “Muhammad Shafi and 2 Others Versus The State” (PLD 1967 Supreme Court 167).

[Also see

- “Muddassar alias Jimmi Versus The State” (1996 SCMR 3).
- “Mir Hassan and Others Versus State and Others” (1999 SCMR 1418).
- “Muhammad Akram and another Versus The State” (1984 P Cr. LJ 2362).
- “Ismail Pervez Minhas and another Versus The State and another” (2018 YLR Note 119).
- “Yar Muhammad Khan Versus Bashir Ahmed” (PLD 2003 Peshawar 179).
- “Habibur Rehman and another Versus Malang and Others” (2005 YLR 2474)]

taking up the time of the Court and by subjecting each of the witnesses to a prolonged ordeal. He undertook to avoid such a practice in the future...”

9. Learned counsel for the respondent has specified that cross-examination on PW-1 was conducted on 19.11.2024, 25.11.2024, 07.12.2024, 17.12.2024, 19.12.2024, 02.01.2025, 04.01.2025, 06.01.2025 and thereafter on 22.04.2025 upon the judgment passed by this Court with the concurrence of the parties. He stated that cross-examination conducted on PW-1 is comprising of forty (40) pages. For the sake of clarity, we summoned the record of the learned trial Court. The contention of the learned counsel for respondent No. 1 is found totally correct.

10. Besides verity of statement of a learned Judge, the applicant wants to disturb correctness of a conclusion arrived after a conscious perusal of record and in depth examination of the relevant area, which was a subject matter in the constitution petition. If the request of the petitioner to review is allowed the same would amount to granting this Court the jurisdiction of rehearing appeal⁷, which is not acceptable. The scope of review in the

⁷ “Mehmood Hussain Lark and Others Versus Muslim Commercial Bank Limited and Others” (2010 SCMR 1036).

- “Sh. Mehdi Hassan Versus Province of Punjab through Member, Board of Revenue, and 5 Others” (2007 SCMR 755).
- “Mian Asghar Ali versus Government of Punjab through Secretary (Colonies) BOR, Lahore and others” (2017 SCMR 118).
- “Syed Rizwan Ahmad and 3 others versus Secretary, CADD, Islamabad and others”(2018 SCMR 997).
- “Justice Khurshid Anwar Bhinder and others versus Federation of Pakistan and another”(PLD 2010 SC 483).
- “Engineers Study Forum (Registered) and another versus Federation of Pakistan, etc.” (PLJ 2017 SC 38).

circumstances of the case, cannot be enlarged than what is already entrenched in “Syed Ali Ahmed Shah” case (*supra*).

11. Learned counsel for the petitioner has failed to convince us as to availability of any recognized ground to review the judgment passed by the learned Judge on 09.04.2025. Resultantly, this application having no merit is **dismissed**. No order as to costs.

(Hassan Nawaz Makhdoom) (Sultan Tanvir Ahmad)
Judge Judge

Approved for reporting

Judge

Judge

J.A. Hashmi/-